Reconstruction Plans: Lincoln's Ten Percent Plan

President Abraham Lincoln · December 8, 1863

Source: Abraham Lincoln, Proclamation of Amnesty and Reconstruction (1863), U.S. Statutes at Large, vol. 13. Public domain. Principal operative sections.

> Lincoln's lenient wartime blueprint for readmitting Confederate states: pardon most Southerners who swore loyalty and accepted emancipation, and let a state rejoin once one-tenth of its 1860 voters took the oath. Radical Republicans countered with the far stricter Wade-Davis Bill (1864).

COMPLETE TEXT — UNEDITED

Proclamation of Amnesty and Reconstruction (Lincoln's "Ten Percent Plan") — December 8, 1863

I, Abraham Lincoln, President of the United States, do proclaim, declare, and make known to all persons who have, directly or by implication, participated in the existing rebellion, except as hereinafter excepted, that a full pardon is hereby granted to them and each of them, with restoration of all rights of property, except as to slaves . . . upon the condition that every such person shall take and subscribe an oath, and thenceforward keep and maintain said oath inviolate.

[The oath:] "I _____ do solemnly swear, in presence of Almighty God, that I will henceforth faithfully support, protect, and defend the Constitution of the United States and the Union of the States thereunder; and that I will, in like manner, abide by and faithfully support all acts of congress passed during the existing rebellion with reference to slaves . . . and . . . all proclamations of the President made during the existing rebellion having reference to slaves. So help me God."

The persons excepted from the benefits of the foregoing provisions are all who are, or shall have been, civil or diplomatic officers or agents of the so-called Confederate government; . . . all who are, or shall have been, military or naval officers of said so-called Confederate government above the rank of colonel in the army or of lieutenant in the navy; . . . and all who have engaged in any way in treating colored persons . . . otherwise than lawfully as prisoners of war.

And I do further proclaim, declare, and make known that whenever, in any of the States of Arkansas, Texas, Louisiana, Mississippi, Tennessee, Alabama, Georgia, Florida, South Carolina, and North Carolina, a number of persons, not less than one tenth in number of the votes cast in such state at the presidential election of the year of our Lord one thousand eight hundred and sixty, each having taken the oath aforesaid, and not having since violated it . . . shall reestablish a state government which shall be republican . . . such shall be recognized as the true government of the state.

And I do further proclaim . . . that any provision which may be adopted by such state government in relation to the freed people of such state, which shall recognize and declare their permanent freedom, provide for their education, and which may yet be consistent as a temporary arrangement with their present condition as a laboring, landless, and homeless class, will not be objected to by the National Executive.

And it is suggested . . . that whether members sent to congress from any state shall be admitted to seats constitutionally rests exclusively with the respective houses, and not to any extent with the Executive.